



U.S. Department
of Transportation

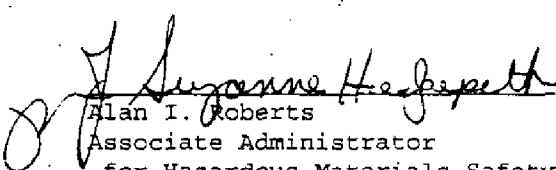
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9059 (EXTENSION)
ORIGINAL July 19, 1988
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9059 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 30 1994

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

The Boeing Co.
Seattle, WA

July 22, 1994

U.S. Department of Defense
Falls Church, VA

July 31, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

U.S. Department
of Transportation

**Research and
Special Programs
Administration**

DOT-E 9059
(CORRECTED COPY)

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 19 1988

1. Air Products and Chemicals, Inc., Allentown, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of fluorine gas mixtures for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of cylinders currently used for fluorine, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Boeing Aerospace Company, Seattle, WA - PTE-1.

2. BASIS. This exemption is based on the application of Air Products and Chemicals, Inc. dated June 1, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Boeing Aerospace Company's application dated May 22, 1987.

3. HAZARDOUS MATERIALS (Descriptor and class). Fluorine mixed with other nonflammable gases which have been identified to, and acknowledged in writing by this Office; classed as nonflammable gas, UN 1045.

4. PROPER SHIPPING NAME (49 CFR 172.101). Fluorine UN 1045.

5. REGULATION AFFECTED. 49 CFR 172.101, 172.202, 173.34(d)(4), 173.302(d).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is any cylinder currently prescribed for fluorine. All regulations for this shipment of pure fluorine are applicable.

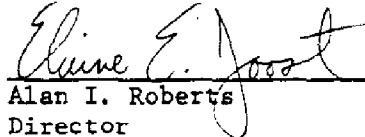
8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. June 30, 1989.

Issued at Washington, D.C.:



Alan I. Roberts

Director

Office of Hazardous Materials
Transportation

JUL 19 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

Dist: FHWA, FRA